

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
NATALIE UREA and EDWIN BARRETO

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
LUIS LOJA, SHIELD #15661, INDIVIDUALLY
AND AS A POLICE OFFICER, POLICE
OFFICER ANTHONY CAMACHO, SHIELD
10227, INDIVIDUALLY AND AS A POLICE
OFFICER, POLICE OFFICER CHRISTOPHER
FARRELL, SHIELD # 6349, INDIVIDUALLY
AND AS A POLICE OFFICER, SGT THOMAS
PULAWSKI, SHIELD # 2642, INDIVIDUALLY
AND AS A POLICE OFFICER, SGT. EUDY
SANTOS, INDIVIDUALLY AND AS A POLICE
OFFICER, AND POLICE OFFICER JOHN DOES
#1-#8, BELIEVED TO BE FROM THE 78TH PCT.,

Defendants.

-----X

**SUMMONS WITH
VERIFIED COMPLAINT**

INDEX NO.

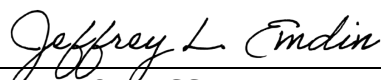
Date purchased:

Plaintiffs designate Kings
County as the place of trial.
The basis of the venue is place
where the cause of action arose

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service, (30) days after the service is complete, if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 26th day of May, 2020



EMDIN & RUSSELL, LLP

Jeffrey L. Emdin, Esq., as Counsel

Attorneys for Plaintiffs

330 West 38th Street

New York, New York 10018

(212) 265-1350

Defendants address:

City of New York
C/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

New York City Police Department
1 Police Plaza
New York, NY

Police Officer Joseph Luis Loja, shield 15661
Police Officer Anthony Camacho, shield # 10227
Police Officer Christopher Farrell, shield # 6349
Sgt Thomasz Pulawski, shield #2642
Sgt. Eudy Santos
c/o 78th precinct
65 6th Avenue
Brooklyn, NY 11217

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The plaintiffs, Natalie Urrea and Edwin Barreto, by their attorneys, Emdin & Russell, LLP
complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
2. Upon information and belief at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department hereinafter referred to as "NYPD", including all the police officers therein.

3. Upon information and belief, at all times hereinafter mentioned, including on the 5th day of July, 2019, Police Officer Luis Loja, shield #15661, (hereinafter referred to as “Loja”) was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 78th pct., At all relevant times set forth below Loja acted in the capacity of a police officer.
4. Upon information and belief at all times hereinafter mentioned and on the 5th day of July, 2019 “Loja”, was acting within the scope of his employment as a police officer and under the direction of the “City” and/or “NYPD” as their agent, servant, and/or employee.
5. Upon information and belief, at all times hereinafter mentioned, including on the 5th day of July, 2019, Police Officer Anthony Camacho, shield #10227, (hereinafter referred to as “Camacho”) was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 78th pct. At all relevant times set forth below Camacho acted in the capacity of a police officer.
6. Upon information and belief at all times hereinafter mentioned and on the 5th day of July, 2019 “Camacho”, was acting within the scope of his employment as a police officer and under the direction of the “City” and/or “NYPD” as their agent, servant, and/or employee.
7. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of July, 2019, Police Officer Christopher Farrell, shield #6349, (hereinafter referred to as “Farrell”) was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 78th pct., At all relevant times set forth below Farrell acted in the capacity of a police officer.
8. Upon information and belief at all times hereinafter mentioned and on the 5th day of July, 2019, “Farrell”, was acting within the scope of his employment as a police officer and under the direction of the “City” and/or “NYPD” as their agent, servant, and/or employee.

9. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of July, 2019, Sgt. Thomasz Pulawski, shield #2642, hereinafter referred to as “Pulawski” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 78th pct., and at all relevant times set forth below acted in the capacity of a police officer.
10. Upon information and belief at all times hereinafter mentioned and on the 5th day of July, 2019, “Pulawski”, was acting within the scope of his employment as a police officer and under the direction of the “City” and/or “NYPD” as their agent, servant, and/or employee.
11. Upon information and belief Pulawski, on July 5, 2019 was the supervisor of defendants Loja, Camacho, and/or Farrell.
12. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of July, 2019, Sgt. Eudy Santos, hereinafter referred to as “Santos” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 78th pct., and at all relevant times set forth below acted in the capacity of a police officer.
13. Upon information and belief at all times hereinafter mentioned and on the 5th day of July, 2019, “Santos”, was acting within the scope of his employment as a police officer and under the direction of the “City” and/or “NYPD” as their agent, servant, and/or employee.
14. Upon information and belief at all times hereinafter mentioned and on the 5th day of July, 2019, “Santos”, was acting within the scope of his employment as a police officer and under the direction of the “City” and/or “NYPD” as their agent, servant, and/or employee.
15. Upon information and belief, at all times hereinafter mentioned and on the 5th day of July, 2019, Police Officer John Does #1 -#8, identities presently unknown, hereinafter referred

to as “Does”, individually and collectively were acting within the scope of his/her employment as a police officer and under the direction of the “City” and/or “NYPD” as their agent, servant, and/or employee, and in their capacities as police officers.

16. On the 5th day of July, 2019, Natalie Urrea, hereinafter referred to as “Urrea” was a resident of the State of New York, County of Kings.

17. On the 5th day of July, 2019, Edwin Barreto, hereinafter referred to as “Barreto” was a resident of the State of New York, County of Kings.

18. Upon information and belief, on July 5, 2019, at approximately 7:30 p.m. defendants “Loja”, “Camacho”, “Farrell”, “Pulawski”, “Santos” and the “Does”, hereinafter collectively referred to as the “officers” or “defendant officers” was and were working within the confines of the 78th pct, in Kings County for the defendant “City”.

19. That on July 5, 2019 at approximately 7:30 p.m., one or more of the defendant officers was present in the vicinity of the Dean Street Park, in Kings County, hereinafter referred to as the “location” and in the process of escorting an individual later identified as Carey Cruise.

20. At that time and place, money in Cruise’s possession suddenly flew into the air, drawing the attention of everyone in the immediate vicinity, including Barreto.

21. Barreto was video-recording the event, when suddenly and without warning, one of the defendant police officers punched Barreto in the mouth.

22. The officer(s) continued to punch Barreto, as they attempted to reach for his phone.

23. Urrea saw Barreto on the ground and ran towards his direction.

24. A male officer, upon information and belief Santos, pushed Urrea in the chest, knocked her to the ground, kicked her in her side several times and kneed her in her back.

25. Meanwhile, Barreto was grabbed, thrown over the hood of a car, choked and struck with a taser dart in his back delivering an electrical charge to his body.
26. The officer(s) fired their tasers at Barreto an additional 1-2 times causing Barreto to fall to the ground. At no time before firing their tasers or using the drive stun mode, did any officer issue a warning to Barreto.
27. While Barreto was on the ground, the officer(s) delivered an electrical charge to Barreto's body, upon information and belief, in drive stun mode where the charge was held against his body for approximately 30-40 seconds, causing immense pain to Barreto.
28. Further, while Barreto was helpless on the ground, one of the officers punched him in the back of his head and forcefully held Barreto's head to the ground.
29. Barreto was screaming in pain and not one officer interceded to stop the abuse from occurring.
30. Both Urrea and Barreto were arrested at the location and handcuffed.
31. Urrea and Barreto were both transported in handcuffs to the 78th pct.
32. Urrea and Barreto were searched at the 78th pct.
33. Urrea and Barreto were each placed in a locked holding cell.
34. Urrea was released from custody after approximately four (4) hours and issued a Summons to appear in court.
35. Barreto was kept in custody until arraignment.
36. While he was held in custody, Barreto was strip searched by the defendants.
37. Barreto was eventually transported to Kings County Central Booking for arraignment. At his arraignment Barreto was falsely charged with violations of NY Penal Law sections

120.00, 240.20, 120.15, 240.26, 120.15, 195.05, 120.08 and 205.30 on docket number CR-025650-19N. Barreto was released from custody at his arraignment.

38. The Criminal Complaint was signed by Police Officer Luis Loja under oath.

39. Natalie Urrea was issued a summons to appear in Criminal Court to answer to the false charge of disorderly conduct. She appeared in court on September 3, 2019.

40. Due to the false charges, Urrea retained legal counsel to defend her.

41. On September 3, 2019 all criminal charges against Urrea were dismissed.

42. Upon information and belief the false criminal charges are still pending against Barreto.

43. Urrea was physically and emotionally traumatized as a result of the defendants' actions.

44. Barreto was physically and emotionally traumatized as a result of the defendants' actions.

45. That notice of each of the plaintiff's claim and notice of intention to sue for damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant "City".

46. That a 50(h) hearing was held on Urrea on October 31, 2019.

47. On March 10, 2020, Barreto and the City entered into a stipulation, permitting the plaintiff, Barreto to file a Summons and Complaint, and reserving the City's right to conduct a 50 h hearing after Barreto's criminal case is disposed.

48. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

49. That this action is being commenced within one year and 90 days after the cause of action arose.

50. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF PLAINTIFF, URREA
FOR FALSE IMPRISONMENT

51. Plaintiff Urrea, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "50" with the same force and effect as if more fully and at length set forth herein.

52. That on or about the 5th day of July, 2019, at or about approximately 7:40 p.m. at or near the "location" and at subsequent times thereafter, including but not limited to the 78th pct., the defendants, their agents, servants and/or employees detained and imprisoned plaintiff Urrea without any just cause or grounds, and held her against her will under full force of arms until she was released from their custody on or about July 5, 2019 at 11:30 p.m.

53. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff Urrea was guilty of any crimes.

54. The plaintiff, Urrea, was wholly innocent of all criminal charges and did not contribute in any way or manner to her arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.

55. That the defendants, their agents servants and/or employees, as set forth above, intended

to confine the plaintiff; that Urrea was conscious of the confinement; Urrea did not consent to the confinement; and the confinement was not otherwise privileged.

56. That by reason of the aforesaid false imprisonment and detention, plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body and, incurred legal fees and the said plaintiff has been otherwise damaged.

57. That by reason of the aforesaid, Urrea has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF
ACTION ON BEHALF OF PLAINTIFF, URREA
FOR FALSE ARREST

58. Plaintiff, Urrea, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "57" with the same force and effect as if more fully and at length set forth herein.

59. That beginning on or about the 5th day of July, 2019, at or about approximately 7:40 p.m. at or near the "location the plaintiff, Urrea, was handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against her will under full force of arm.

60. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff Urrea was guilty of any crime.

61. The plaintiff, Urrea, was wholly innocent of all criminal charges and did not contribute in any way or manner to her arrest by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest entirely against her will.

62. That the defendants, their agents, servants and/or employees, as set forth above, intended to seize and arrest the plaintiff; that Urrea was conscious of the arrest and confinement; Urrea did not consent to the arrest and confinement; and the arrest was not otherwise privileged.
63. That by reason of the aforesaid false imprisonment and detention, plaintiff Urrea was subjected to great indignity, humiliation, pain and great distress of mind and body and, incurred legal fees and the said plaintiff has been otherwise damaged.
64. That by reason of the aforesaid, Urrea has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
URREA FOR ASSAULT AND BATTERY

65. Plaintiff, Urrea, repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "64" with the same force and affect as if more fully and at length set forth herein.
66. That upon information and belief, Urrea was, without provocation, violently and viciously pushed, thrown to the ground, kicked by defendant "Santos" and kneed in the back, while in the performance of his duties as a police officer. Thereafter the plaintiff was handcuffed, fingerprinted, searched, and imprisoned by the defendant, "City", and the "NYPD" its agents/servants, and/or employees.
67. That all said contact was committed without plaintiff Urrea's permission or consent.
68. That all said contact was unlawful and without privilege.
69. That all contact committed by defendants through their agents, servants, and/or employees,

including defendant “Santos”, was offensive to plaintiff, Urrea, and caused her to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury and seek medical attention.

70. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff, Urrea.

71. That by reason of the aforesaid, the plaintiff, Urrea has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
URREA FOR EXCESSIVE FORCE

72. Plaintiff, Urrea, repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "71" with the same force and affect as if more fully and at length set forth herein.

73. That as stated above, defendant Santos’ actions in pushing Urrea, a 21 year old, five foot tall and 110 pound female in the chest and then proceeding to grab her, throw her to the ground and kick her multiple times in the ribs, knee her in the back compressing her chest, was without cause, or need or privilege was excessive and exceeded all reasonable bounds of decency by a reasonable officer in Santos’ position.

74. That all contact committed by defendants through their agents, servants, and/or employees, including defendant “Santos”, was excessive and offensive to plaintiff, Urrea, and caused her to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury and seek medical attention.

75. That the above acts committed by the defendants constituted an excessive use of force of

the plaintiff, Urrea.

76. That by reason of the aforesaid, the plaintiff, Urrea has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
URREA FOR FAILING TO INTERVENE, MITIGATE OR STOP

77. Plaintiff, Urrea, repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "76" with the same force and affect as if more fully and at length set forth herein.

78. Upon information and belief, defendants Loja, Camacho, Farrell, Pulawski and Does were in the immediate vicinity of the location and time when Santos assaulted, battered, used excessive force and falsely arrest Urrea, and took no action to stop, intervene, and mitigate such actions from occurring.

79. Upon information and belief, defendants Loja, Camacho, Farrell, Pulawski and Does were under a duty to act and failed to do so when Santos assaulted, battered, used excessive force and falsely arrested Urrea.

80. That the above acts committed by the defendants constituted a failure to intervene, proximately causing the physical and emotional harm endured by the plaintiff Urrea.

81. That by reason of the aforesaid, the plaintiff, Urrea has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
URREA FOR NEGLIGENCE

82. Plaintiff, Urrea, repeats, reiterates and re-alleges each and every allegation contained in

paragraphs marked "1" through "81" with the same force and affect as if more fully and at length set forth herein.

83. That the defendant, "City" was careless and reckless in hiring, retaining, training, supervising, monitoring, observing, disciplining and promoting as and for its employees, defendant "officers", in that said employee(s) lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized, i.e. as police officers. That the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "officers" failed to investigate the above named employee's backgrounds; in that the City failed to properly train, supervise and monitor the "officers", and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

84. That the defendant "officer(s)" each while acting within the scope of their employment, was negligent in that each failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that each was negligent, careless and reckless in the manner in which they investigated and/or performed his police duties; in that the police department permitted or condoned the false arrest, and/or false documentation submitted by these and other officers; use of force, use of excessive force, failure to intervene and/or report misconduct, and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

85. That the aforesaid occurrence, to wit: assault and battery, false arrest and imprisonment, and the resulting injuries to mind and body therefrom, were caused wholly and solely by

reason of the negligence of the defendants, its agents, servants and/or employees without any negligence on the part of the plaintiff, Urrea, contributing thereto.

86. That by reason of the aforesaid, the plaintiff, Urrea, was injured in mind and body, still suffers and upon information and belief will continue to suffer great physical and mental pain, and she was thereby damaged. That plaintiff expended and incurred divers sum of money in an effort to cure herself of said injuries and to extricate herself from the indignities and humiliation foisted upon her by the actions of the defendants, their agents, servants and/or employees, including counsel fees and disbursements, and, upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

87. That by reason of the aforesaid, Urrea has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
URREA FOR MALICIOUS PROSECUTION

88. Plaintiff, Urrea repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "87" with the same force and effect as if more fully and at length set forth herein.

89. That the defendants, their agents, servants and/or employees maliciously and knowingly filed false police reports and criminal charges against plaintiff, Urrea.

90. That plaintiff Urrea was and is, innocent of all charges and had committed no crime.

91. That the defendants filed a false complaint against Urrea for the purpose of criminally prosecuting the plaintiff.

92. That as a result of the false charges, and false police reports, plaintiff Urrea was required to defend herself in court, hire legal counsel and was otherwise damaged.

93. That all criminal charges were dismissed against Urrea.

94. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower court.

AS AND FOR AN EIGHTH CAUSE OF ACTION:
ON BEHALF OF URREA FOR VIOLATION
OF PERSONAL CONSTITUTIONAL RIGHTS UNDER
42 .S.C. 1983 AGAINST THE CITY OF NEW YORK

95. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "94" with the same force and effect as if more fully and at length set forth herein.

96. That on or about the 5th day of July, 2019 at or about approximately 7:40 p.m. in the vicinity of the "location" defendants "officers" were present thereat as part of their regular and official employment as police officers for the defendant, "City".

97. Plaintiff, Urrea, was lawfully and properly at said "location", and she verbally inquired and objected what the officers were doing to her husband, Baretto. Thereupon she was suddenly pushed by Santos, grabbed, thrown to the ground, kicked multiple times and had her chest compressed by an officer's knee.

98. At all times "Santos acted as an agent, servant and/or employee of the defendant "City".

99. That said other "officers" who were present thereat and had the ability to intercede, stop and mitigate said harm to Urrea, yet failed to do so, in keeping with the code of conduct/silence promoted by, and/or deliberately indifferent to by the City and/or NYPD.

100. That not one officer who was present reported said misconduct by Santos, also in keeping

with the code of silence promoted by or tacitly approved by, or deliberately indifferent to, by the City and/or NYPD.

101. That all acts, actions and/or omissions committed by “the officers” and other agents servants, employees and/or agents of the defendant “City” were committed within the scope of their employment and under color of law.

102. That said acts constituted an illegal seizure of the plaintiff and deprived plaintiff Urrea, of her rights and liberties as set forth in the Constitutions of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.

103. That said acts constituted an excessive use of force by the defendants and deprived plaintiff Urrea, of her rights and liberties as set forth in the Constitutions of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.

104. That said actions: violated the Fourth and Fourteenth Amendments to the Constitution of the United States of America; violated plaintiff’s right to be secure in her person; and the defendants used excessive and unlawful force.

105. The plaintiff was struck by Sgt. Santos in retaliation to Urrea’s exercise of her 1st Amendment rights to inquire what happened to her husband. Defendant “Santos” retaliated to the exercise of free speech, thereby, violated Urrea’s First and Fourteenth Amendment Rights. The retaliation also included filing false criminal charges against Urrea.

106. That the defendant City caused or created a practice, policy and/or custom, and/or acted with deliberate indifference thereto, to patterns and /or police practices which include: the excessive use of force; illegal use of police equipment; failing follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when

allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; filing false arrest charges to cover up illegal use of force by police; engaging in racial profiling; failing to properly supervise, train, investigate or discipline officers; retaliation to the use of free speech condemning police actions, any and /or all of the above contributing to plaintiff's false arrest, false criminal prosecution, and injuries.

107. The defendants' actions on July 5, 2019 were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

108. That Urrea did not commit any illegal act, either before or at the time she was falsely arrested and imprisoned, assaulted, battered, and deprived of her constitutional rights as set forth in the Constitution of the United States, statutes of the United States, particularly 42 U.S.C. §1983, and the Constitution of the State of New York.

109. That by reason of the aforesaid, the plaintiff, Urrea, was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and she was damaged.

110. That by reason of the aforesaid, the plaintiff, Urrea has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A NINTH THROUGH THIRTEENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, BY LOJA, CAMACHO, FARRELL, PULAWSKI,
SANTOS AND OTHER UNKNOWN "OFFICERS", EACH
IN HIS INDIVIDUAL CAPACITY AND AS AN AGENT OF
THE CITY OF NEW YORK, URREA ALLEGES:

111. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "110" with the same force and affect as if more fully and at length set forth herein.
112. That at all times mentioned in this Complaint, the defendants "Loja", "Camacho", "Farrell", "Pulawski", "Santos" and the "Does" were employed by the defendants The City of New York and/or The New York City Police Department. That said "officers at all relevant times was acting under the color of his official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
113. That upon information and belief, at all times hereinbefore and hereinafter mentioned, each of the defendant "officers" was acting pursuant to orders and directives from defendant, The City of New York.
114. That upon information and belief, during all times herein mentioned, each defendant "officer" acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department. That each of the officers named herein engaged in the illegal conduct set forth in this Complaint to the injury of the plaintiff and deprived her of the rights, privileges and immunities secured to her: by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States, by the laws of the United States,

including U.S.C. Section 1983 and 1986, and by the Constitution and laws of the State of New York.

115. That the unlawful and illegal conduct of each defendant “officers” deprived plaintiff, Urrea of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be secure in her person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.
- c) The right to freedom of speech.
- d) The right not to be subjected to cruel and inhuman treatment, including the excessive force.
- e) The right not to be discriminated against based upon the plaintiff’s race, creed, sex, or sexual orientation

116. That by reason of the aforesaid violations, including but not limited to the defendants: use of force, use of arbitrary, excessive and sadistic force, seizure of plaintiff’s person, false arrest and false imprisonment, assault and battery, retaliation to the use of free speech, falsifying evidence, failing to intervene, mitigate and/or stop the afore stated violations from occurring, as well as malicious prosecution, the defendants, Loja, Camacho, Farrell, Pulawski, Santos and the Does violated Urrea’s rights and privileges as provided to her in

the Constitution of the United States of America, in the Constitution of the State of New York, and laws thereto, and that “the officers” and the City, under the doctrine of respondent superior, violated 42 U.S.C. §1983.

117. That as a direct proximate result of “the officers” actions plaintiff, Urrea was subjected to great indignities, injury, pain and distress of mind and body and was humiliated and defamed thereby.

118. That by reason of the aforesaid, plaintiff, Urrea, was injured in mind and body, suffers, and upon information and belief will continue to suffer, great physical and mental pain and distress. Further, plaintiff has expended and incurred divers sums of money in an effort to cure herself of said injuries, to extricate herself from the indignities and humiliation foisted upon her by the actions of the “officers”.

119. That by reason of the aforesaid, the plaintiff, Urrea, has been damaged and seeks compensatory damages, plus, punitive damages, costs, attorney’s fees, expert fees, as Set forth and provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A FOURTEENTH CAUSE OF
ACTION ON BEHALF OF PLAINTIFF, BARRETO
FOR FALSE IMPRISONMENT

120. Plaintiff, Barreto, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "119" with the same force and affect as if more fully and at length set forth herein.

121. That commencing on or about the 5th day of July, 2019, at approximately 7:40 p.m., until he was released on his own recognizance at arraignment on or about July 6, 2019, Barreto

was falsely imprisoned by the defendants, their agents, servants and/or without any just cause or grounds. Barreto was held by the defendants against his will, under full force of arms.

122. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process, without authority of the law, and without any reasonable grounds or cause to believe that the plaintiff, Barreto, was guilty of any crimes.

123. The plaintiff, Barreto, was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

124. That the defendants, their agents servants and/or employees, as set forth above, intended to confine the plaintiff; that Barreto was conscious of the confinement; Barreto did not consent to the confinement; and the confinement was not otherwise privileged.

125. That by reason of the aforesaid false imprisonment and detention, plaintiff Barreto was subjected to great indignity, humiliation, pain and great distress of mind and body and, incurred legal fees and the said plaintiff has been otherwise damaged.

126. That by reason of the aforesaid, Barreto has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A FIFTEENTH CAUSE OF
ACTION ON BEHALF OF PLAINTIFF, BARRETO,
FOR FALSE ARREST

127. Plaintiff, Barreto, repeats, reiterates and realleges each and every allegation contained in

paragraphs marked "1" through "126" with the same force and affect as if more fully and at length set forth herein.

128. That beginning on or about the 5th day of July, 2019, at or about approximately 7:40 p.m.

at or near the "location the plaintiff, Barreto, was handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms.

129. That said arrest was caused by the defendants, its' agents, servants, and/or employees. That

said arrest was without any warrant or other legal process, without authority of the law and without any reasonable grounds or cause to believe that the plaintiff, Barreto, was guilty of any crime.

130. The plaintiff, Barreto, was wholly innocent of all criminal charges and did not contribute

in any way or manner to his arrest by the defendants, their agents, servants and/or employees, and was forced to submit to the arrest entirely against his will.

131. That the defendants, their agents, servants, and/or employees, as set forth above, intended

to seize and arrest the plaintiff; that Barreto was conscious of the arrest and confinement; Barreto did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

132. That by reason of the aforesaid false imprisonment and detention, plaintiff Barreto was

subjected to great indignity, humiliation, pain and great distress of mind and body and the said plaintiff has been otherwise damaged.

133. That by reason of the aforesaid, Baretto has been damaged in an amount exceeding the

jurisdictional limits of the lower courts.

**AS AND FOR A SIXTEENTH CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
BARRETO FOR ASSAULT AND BATTERY**

134. Plaintiff, Barreto, repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "133" with the same force and affect as if more fully and at length set forth herein
135. Barreto absent provocation or justification, was violently and viciously punched in the face and body, thrown over the hood of a car, choked and tasered multiple times, including in drive stun mode by the defendants. The plaintiff was also punched, handcuffed and arrested. He later was subjected to a strip search at the 78th pct. by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including, upon information and belief, one or more of the named "officers".
136. That all said contact was committed without Barreto's permission or consent.
137. That all said contact was unlawful and without privilege.
138. That all contact committed by defendants through their agents, servants, and/or employees, including defendant "officers", was offensive to plaintiff, Barreto, and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury and seek medical attention.
139. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff, Barreto.
140. That by reason of the aforesaid, the plaintiff, Barreto has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
BARRETO FOR EXCESSIVE FORCE

141. Plaintiff, Barreto, repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "140" with the same force and affect as if more fully and at length set forth herein.

142. That as stated above, defendant "officers" actions in repeatedly punching, choking and tasing Barreto and then proceeding to grab arrest, handcuff and strip search without cause, or need or privilege was excessive and exceeded all reasonable bounds of decency by a reasonable officer in the "Officers" place or position.

143. That all contact committed by defendants through their agents, servants, and/or employees, including defendant "officers", was excessive and offensive to plaintiff, Barreto, and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury and seek medical attention.

144. That the above acts committed by the defendants constituted an excessive use of force of the plaintiff, Barreto.

145. That by reason of the aforesaid, the plaintiff, Barreto, has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A EIGHTEENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
BARRETO FOR FAILING TO INTERVENE, MITIGATE OR STOP

146. Plaintiff, Barreto, repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "145" with the same force and affect as if more fully and at length set forth herein.

147. Upon information and belief, defendants Loja, Camacho, Farrell, Pulawski, Santos, and Does were in the immediate vicinity of the location at the time when Baretto was assaulted, battered, was the victim of excessive force, and was falsely arrested and took no action to stop, intervene, or mitigate such actions from occurring.
148. Upon information and belief, defendants Loja, Camacho, Farrell, Pulawski and Does were under a duty to act and failed to do so when one or more of the “officers” assaulted, battered, used excessive force, and falsely arrested Barreto.
149. That the above acts committed by the defendants constituted a failure to intervene proximately causing the physical and emotional harm endured by the plaintiff Barreto.
150. That by reason of the aforesaid, the plaintiff, Barreto has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A NINETEENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
BARRETO FOR NEGLIGENCE

151. Plaintiff, Barreto, repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "150" with the same force and affect as if more fully and at length set forth herein.
152. That the defendant, “City” was careless and reckless in its’ hiring, retaining, training, supervising, monitoring, observing, disciplining and promoting, as and for its employees, the defendants “officers”, That upon information and belief the “officers” lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized at the time and place of occurrence as set forth in this Complaint. In that the defendant, “City” failed to exercise due care and caution in its hiring and

promoting practices; in that the defendant “officers” failed to investigate the above named employee’s backgrounds; in that the City failed to properly train, supervise and monitor the “officers”, and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

153. That each defendant “officer” while acting within the scope of his employment, was negligent in that each failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances. That each was negligent, careless and reckless in the manner in which they investigated and/or performed his police duties. That the NYPD permitted or condoned the false arrest, and/or false documentation submitted by these and other officers; use of force, use of excessive force, failure to intervene and/or report misconduct, and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.
154. That the aforesaid occurrence, to wit: assault and battery, false arrest and imprisonment, and the resulting injuries to mind and body therefrom, was caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees without any negligence on the part of the plaintiff, Barreto, contributing thereto.
155. That by reason of the aforesaid, the plaintiff, Barreto, was injured in mind and body, still suffers and upon information and belief will continue to suffer great physical and mental pain, and he was thereby damaged. That, upon information and belief, the plaintiff expended and incurred divers’ sum of money in an effort to cure himself of said injuries and to extricate himself from the indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and/or employees. Upon information and

belief, plaintiff will expend further sums in that direction, and the plaintiff has been otherwise damaged.

156. That by reason of the aforesaid, Barreto, has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A TWENTYIETH CAUSE OF ACTION:
ON BEHALF OF BARRETO FOR VIOLATION
OF PERSONAL CONSTITUTIONAL RIGHTS UNDER
42 U.S.C. 1983 AGAINST THE CITY OF NEW YORK

157. That plaintiff Barreto, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "156" with the same force and effect as if more fully and at length set forth herein.

158. That on or about the 5th day of July, 2019 at or about approximately 7:40 p.m., in the vicinity of the "location" defendant "officers" were present thereat as part of their regular and official employment as police officers for the defendant, "City".

159. Barreto was lawfully and properly at said "location", videotaping police activity, when he was, upon information, summarily punched, grabbed, thrown over a car, and tasered and struck multiple times by the defendants. Upon information and belief this was done in retaliation to videotaping defendant officers.

160. At all times each of the "officers" acted as an agent, servant and/or employees of the defendant "City".

161. That said other officers, who were present thereat and had the ability to intercede, stop and mitigate said harm to Barreto, failed to do so, in keeping with the code of conduct promoted by the City and/or NYPD.

162. Instead the defendant officers allowed the use of force to escalate, culminating in the use

of a CEW weapon discharged and used against Barreto in rapid succession without warning or justifiable reason.

163. Upon information and belief, the defendant City and/or NYPD's laws, rules, guidelines, policies, customs and/or procedures, conflict with its' own de-escalation policy and patrol guidelines. Upon information and belief this has led to, and continues to leads to, many instances of improper use of its CEW, or tasers. Upon information and belief the City and NYPD have ignored the data of use of CEW where and when it was not required, or permitted including its use herein by the defendants.

164. An article published in the Daily News on December 5, 2019, titled, NYPD hit on Taser Use; CCRB says training needs improvement, but police push back, cites a Civilian Complaint Review Board report which noted that NYPD use of taser as an enforcement mechanism often conflicts with its own de-escalation policy The report called for more comprehensive training and data for all instances of taser discharge.

165. In response to said report, NYPD spokesperson Al Baker, was quoted as saying "Our guiding principle, in all cases, is to use only a reasonable level of force necessary in any situation. Our Taser training is integrated with our de-escalation and Crisis Intervention Team training and our commitment to use non-lethal means to successfully manage encounters with New York's most vulnerable residents" Quoted in the Brooklyn Daily Eagle December 6, 2019, CCRB review of NYPD Taser use shows discrepancies.

166. The CCRB report which reviewed CEW use by NYPD during the period 2014-2017, including use during drive stun mode, found "While the NYPD Patrol Guide states that drive stun mode should not be used as the primary method of Taser deployment "unless

exceptional circumstances exist,” it does not define the phrase “exceptional circumstances.”

167. Upon information and belief training on Taser use also does not define the phrase, “exceptional circumstances” but it does advise officers to avoid using drive stun mode except 1) in conjunction with probe mode in an effort to complete a circuit with three-point contact, 2) to create reactionary distance when a subject is in close proximity to an officer, or 3) to obtain pain compliance via brief application. The training notes that each Taser discharge must be legally justifiable and that Tasers should not be deployed in drive stun mode past the point at which it would be effective at gaining compliance. There are, however, no clear examples provided in training that might better elucidate the advised limitations of the use of a Taser in drive stun mode. NYPD training on Taser use would be bolstered by adding descriptions of situations in which using a Taser in drive stun mode would be considered excessive.”

168. None of these exceptional circumstances existed when the drive stun mode was used against Barreto for 30-40 seconds, due to the CITY and or NYPD lack of training, ambiguous language and failure to retrain or punish NYPD officers who unnecessarily discharge their CEW weapons.

169. Defendants’ actions on July 5, 2019 was performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York, and they were performed to the detriment of the plaintiff.

170. That the plaintiff, Barreto, did not commit any illegal act, either before or at the time she was stopped, seized, assaulted, tasered, falsely arrested and imprisoned, battered, and

deprived of her constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

171. Upon information and belief the defendant “officers” actions including but not limited to the seizure, assault and battery, excessive use of force, arrest and fabrication of evidence, and/or providing false statements/testimony were in retaliation to Barreto’s filming NYPD police c onduct.

172. The aforementioned custom and practice of the City and the NYPD include, but are not limited to the following:

- a. Making retaliatory arrests against persons who lawfully photograph, document or record police activity;
- b. Arresting persons known to be innocent particularly where such persons are negated in activity protected by the First Amendment and/or the consent decree Black v. Codd;
- c. Deleting or tampering (or attempting to) with evidence documenting improper or illegal police conduct;
- d. Deleting or tampering (or attempting to) with exculpatory evidence;
- e. Illegally accessing (or attempting to) electronic equipment ;
- f. Prosecuting and maintaining prosecution of crimes against persons who lawfully photograph, document or record police activity; and
- g. Targeting persons, groups or organizations who record police activity.

173. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following

incidents and civil rights actions filed against the City:

Journalists and Photographers

a. **May 30, 2007/ Robert Carneval/ Carneval v. City of New York, 08 CV 9993**

(DAB)(AJP)(S.D.N.Y)

A Manhattan photographer, Robert Carneval, was arrested after filming NYPD officers in the East Village as they seized and loaded bikes, which had been locked to lampposts and parking meters, into a police van. After the photographer began filming and discussing the removals with another man, a plainclothes officer asked him for identification. When the photographer stated he had a right to film, the officers led him to a police car, examined his ID, and then arrested him. Colin Moynihan, City Settles with Two arrested After Police Confrontation, The New York times (March 31, 201), <http://cityroom.blogs.nytimes.com/2010/03/31/city-settles-with-pair-arrested-after-police-confronation/>.

b. **November 2011/Patrick Hedlund, Paul Lomax, Matthew Lysiak, Karen Mathews, Julie Walker, and Seth Wenig**

In November of 2011, at least six journalists were arrested while covering the raid and eviction of Occupy Wall Street protesters from Zuccotti Park. Thirteen news organizations in New York City lodged complaints about the treatment of journalists and the suppression of coverage of the event, and ten press clubs, unions, and other groups called for an investigation into the police conduct at issue. CBS New York/ AP, Several Journalists Among Those Arrested d during Zuccotti Park Raid, CBS New York (November 15, 2011),

<http://newyork.cbslocal.com/2011/11/15/officials-journalists-among-those-arrested-during-zuccotti-park-raid/>; Brian Stelter, News Organizations Complain About Treatment During Protests, the New York Times: Media Decoder (November 21, 2011), <http://medicadecoder.blogs.nytimes.com/2011/11/21/news-organizations-complain-about-treatment-during-protests/>.

c. **November 15, 2011/ Timothy Fitzgerald/ Rodriguez v. Winski, 12 CV 3389 (NRB)(S.D.N.Y)**

On or about November 15, 2011, in Zuccotti Park, a publically accessible open space, several police officers grabbed Timothy Fitzgerald, a citizen reporter who was documenting protests activities and police response to same, pulled him to the ground and arrested him.

d. **November 15, 2011/Douglas Higginbotham/ Higginbotham v. The City of New York, 14 CV 8549 (PKC)(S.D.N.Y)**

On November 15, 2015, Mr. Higginbotham, a freelance video-journalist for TV New Zealand was arrested in retaliation for filming police activity associated with Occupy Wall Street.

e. **March 2012/ Unknown**

In March of 2012, a cameraman from WABC-TV was struck by an officers at crime scene for unknown reasons. Carlos Miller, *NYPD Cop Assaults New Videographer at Crime Scene, Photography Is Not a Crime* (March 22, 2012), <http://photographyisnotacime.com/2012/03/22/nypd-cop-assaults-news-videographer-at-crime-scene/>

f. **August 4, 2012/ Robert Stolarik**

Photographer Robert Stolarik, who worked regularly for the New York Times for more than a decade, was charged with obstructing government administration and resisting arrest after taking photographs of a brewing street fight at McClellan Street and Sheridan Avenue in the Bronx. Mr. Stolarik was taking photographs of the arrest of a teenage girl about 10:30 p.m., when a police officer instructed him to stop doing so. Mr. Stolarik said he identified himself f a as a journalist for The New York Times and continued taking pictures. A second officer appeared, grabbed his camera and “slammed” it into his face m he said. The arresting officer was later indicted for falsifying statements surrounding Mr. Stolarik’s arrest. Russ Buettner, *Officer Is Indicted on Charges of Lying about Photographer’s Arrest*. The New York times (Aug. 26, 2013), <http://www.nytimes.com/2013/08/27/nyregion/officer-is-indicted-on-charges-of-lying-about-photographers-arrest-html>.

g. **September 15-17, 2012/ John Knefel, Charles Meacham, and Julia Reinhart**

Five photojournalists reporting on Occupy Wall street protester were arrested in course if their reporting. One photographer was arrested after attempting to take a picture of an officer giving a dispersal order in a sidewalk. Another was forced to the ground and detained while another was shoved and blocked from taking a photo by a Lieutenant in the NYPD’s Legal bureau. Christopher Robbins, *NYPD’s pattern of harassing, arresting journalists continues*, Gothamist (Sep. 19, 2012), http://gothamist.com/2012/09/19/nypds_harrasment_of_journalists_con.php.

- h. **September 12, 2012/ Christopher Farone/ Farone v. City of New York et.al. 13 CV 09074 (TPG)(S.D.N.Y)**

Christopher Farone, a journalist, was photographing a public demonstration at One Chase Manhattan Plaza when NYPD officers tackled, battered and arrested him. One of the officers directed him to cease his reporting activities within New York City.

- i. **December 12, 2011 & March 15, 2012/ John Knefel, Paul Sullivan, and Justin Wedes/ Rodriguez v. Winski, 12 CV 3389 (NRB)(S.D.N.Y.)**

On December 12, 2011, Paul Sullivan, John Knefel and Justin Wedes, citizen reporters who were documenting protest activities and police response to same at the Winder Garden, a publicly accessible open place, were grabbed, pulled to the ground and arrested without warning or probable cause by the NYPD. On March 15, 2012, Mr. Wedes was again threatened with arrest for the same legal activity.

- j. **November 27, 2012/ Angel Zayas/ Zayas v. Kelly, 13 CV 08808 (JMF) (S.D.N.Y)**

On November 27, 2012, a freelance photographer, Angel Zayas, was arrested for photographing officers effect an unrelated arrest in Grand Central Terminal. Daniel Beekman, *Photographer trying to shoot stop and frisk sues NYC over police harassment*, New York Daily News (Dec. 13, 2013), <http://www.daileynews.com/news/justice-story/photog-shooting-frisking-sues-nyc-harrasment-article-1.1546548>

k. January 16, 2013/ Shimon Gifter

A photographer from VIN News, a media outlet for the Orthodox Jewish community, had his camera seized and thrown to the ground, his memory card erased, and his Blackberry damaged after photographing officers stopping and frisking several young men. The photographer was also handcuffed and held up against a wall before being released with a warning. Boruch Shubert, *Police Brutality in Midwood?* The Jewish Voice (Jan. 24, 2013), <http://jewishvoicenyc.com/index.php?option=comcontent&view=article&id=2978:police-brutality-in-midwood&catid=106:international&Itemid=289>; Sandy Eller, *Charedi Photographer Claims Handcuffed by NYPD After Videotaping Flatbush Police Stop*, *Voz Iz Neias?* (Jan. 20, 2013), <http://www.vosizneias.com/122118/2013/01/20/brooklyn-ny-charedi-photographer-claims-handcuffed-by-nypd-after-videotaping-flatbush-police-stop/>.

l. April 19, 2013/ Justin Thomas/ Thomas v. City of New York, 13 CV 6139 (SJ) (LB)(E.D.N.Y.)

A film student was arrested filming the exterior of the 72nd Precinct on April 19, 2013. Officers confiscated the student's cell phone, camera, and then the camera's memory card, as well as his friend's memory card from a camera. Officers failed to remove the correct memory card from the friend's camera. However, leaving evidence of the encounter.

m. **March 16, 2016/ Ed Garcia Conde**

Mr. Conde, a journalist who writes for the Welcome 2 Melrose blog, recorded an interaction between an NYPD officer and a man who the officer believed was violating the open container law. The officer asked Mr. Conde to stop recording, and when he refused, he was given two summonses, one of open container and the other for attempting to create a dangerous situation. Ben Yakas, *Video: Bronx Man Hauled to Jail for Exercising Right to Videotape Cops*, Gothamist (Mar. 16, 2013), http://gothamist.com/2013/03/16/video_bronx_man_hauled_to_jail_for.php

n. **February 9, 2005/ Lumumba Bandele, David Floyd, and Djibril Toure/ Bandele v. The City of New York, 07 CV 3339 (MGC)(S.D.N.Y.)**

Lumumba Bandele, David Floyd, and Djibril Toure were arrested while videotaping two arrests in Bedford-Stuyvesant, Brooklyn, on February 9, 2005. “In trying to stop the police from violating the rights of others, they had their rights violated,” said Kamau Franklin, a lawyer with the Center for Constitutional rights. *Metro Briefing: New York; Manhattan: Lawsuit against the Police*, the New York Times (Apr. 27, 2007), <http://query.nytimes.com/gts/fullpage.html?res=9C02E2DD123EF934A15757C0A9619C8B63>.

o. **September 29, 2009/Dennis Flores/Mesa v. City of New York, 09 CV 10464 (JPO)(S.D.N.Y.)**

On September 29, 2009, Dennis Flores was arrested when he photographed NYPD

officers using excessive force to disperse a crowd at a festival in the Bronx. At one point prior to Flore's arrest, an NYPD officer stated it was "illegal to photograph police."

p. **October 17, 2010/ Anibal Ortiz/ Ortiz v. City of New York, 11 CV 7919 (JMF)(S.D.N.Y)**

On October 17, 2010, Anibal Ortiz was arrested after he began recording NYPD officers, who asked him for identification, with a cell phone camera.

q. **July 11, 2011/George Hess and Caroline Stern/ Stern v. City of New York, 12 CV 04863 (SAS) (S.D.N.Y)**

On July 11, 2011, Caroline Stern was arrested and her boyfriend George Hess, was tackled and arrested after he began video recording an encounter with officers in a subway station. Kathianne Boniello, *Couple handcuffed, jailed for dancing on subway platform: lawsuit*, The New York Post (July 8, 2012), <http://nypos.com/2012/07/08/couple-handcuffed-jailed-for-dancing-on-subway-platform-lawsuit/>

r. **January 10, 2012/Justin Sullivan/Rodriguez v. Winski, 12 Cv 3389 (NRB)**

On January 10, 2012, Justin Sullivan was arrested for filming an Occupy Wall Street protest at Grand Central Terminal and his camera was confiscated. Later, Mr. Sullivan returned to the police precinct at the terminal to retrieve his camera and he was re-arrested. A witness reported an officer destroyed Mr. Sullivan's camera.

s. **April 27, 2012/ John Runnells/ Runnells v. City of New York, 13 Cv 2904 (KBF) (S.D.N.Y.)**

On April 27, 2012, John Runnell's camera was seized and its footage erased after he video recorded a police traffic checkpoint. Mr. Runnells continued recording the officers after his camera was returned, and he was subsequently arrested. Once again, his camera was seized and the footage deleted.

t. **June 5, 2012/Hadiyah Charles/Charles v. City of New York, 12 CV 06180 (SLT)(SMG)(E.D.N.Y.)**

On June 5, 2012 a woman pushed and arrested for using her phone to video record the stop-and-frisk of three unrelated young men on a public sidewalk. Rocco Parascandola, Woman suing NYPD for wrongful arrest discovers that a key piece of evidence has mysteriously vanished from the Brooklyn stationhouse, New York Daily News (Oct. 17, 2013), <http://www.nydailynews.com/new-york/brooklyn/brooklyn-precicnt-log-book-mystery-article-1.1487721>

u. **August 2012/Unknown**

In August of 2012, a man was threatened with arrest for filming outside about 300 feet away from the security checkpoint at One Police Plaza. Carlos Miller, *NYPD Cop Fails at Intimidating Man from Video Recording Police Headquarters, Photography Is Not a Crime* (Aug. 12, 2012), <http://photographyisnotacrime.com/2012/08/17/nypd-cop-fails-at-intimidating-man-from-video-recording-police-headquarters/>

v. **September 28, 2012/ Santos Bobet/ Bobet v. The City of New York, 14 CV 1396**

(WHO)(JLC)(S.D.N.Y.)

On September 28, 2012, at approximately 8:55 p.m., Santos Bobet observed someone being arrested near Whitlock Avenue 6 Station in the Bronx. After beginning to videotape the arrest, he was arrested by Officer Kelvin Prado, who then along with his partner deleted the video footage.

w. May 16, 2013/ Christina Gonzalez and Matthew Swaye

Two Harlem residents were arrested after they filmed NYPD officers conduct stop-and-frisks at a car checkpoint. Christina Gonzalez and Matthew Swaye said they were returning from a Bronx Mall at about 10:30 p.m. when they noticed several vehicles stopped and Gonzalez took out her camera to begin filming. Jeff Mays, *'Professional Agitators' on NYPD 'Wanted' Flier Arrested after Filming Stop*, DNA Info (May 21, 2013), <http://www.dnainfo.com/new-york/20130521/central-harlem/proffesional-agitators-on-nypd-wanted-flier-arrested-filming-stop>

x. June 5, 2013/ Rahul Saksena/ Saksena v. The City of New York, 14 CV 5129**(JBW)(LB)(E.D.N.Y.)**

On June 5, 2014, at approximately 10:00 p.m., Mr. Saksena was arrested in retaliation for filming a civilian police interaction in the Bushwick section of Brooklyn.

y. August 26, 2013/ Jonathan Harris

NYPD officers arrested a Bronx teenager, Johnathan Harris, after he was filming the officers' attack and threatened two young girls in a Bronx park. The teenager told officers to leave the girls alone and began filming them on his phone. The

officers began chasing him, tackled him and punched him before arresting him.

Jennifer Cunningham, *Teens say they were beaten by cops in Bronx park*, New York Daily News (Aug. 29, 2013) <http://www.nydailynews.com/new-york/bronx/teens-mauled-cops-article-1.1440394#ixzz2eVh68jgw>

z. **September 19, 2013/ Sean Basinki/ Basinki v. The City of New York, 14 CV 1057 (LTS)(S.D.N.Y.)**

On September 19, 2013, a lawyer, Sean Basinki was arrested while using a phone to record police during a rally in front of Midtown North Precinct police station on West 54th Street. Clin Moynihan, *Street Vendors Protest Treatment by Police*, The New York Times (Oct. 2, 2013), http://www.nytimes.com/2013/10/03/nyregion/street-vendors-protest-treatment-by-police.html?_r=0

aa. **2013/ Debra Goodman/ Goodman v. City of New York, 14 CV 5261 (CM)(S.D.N.Y.)**

Officers arrested Ms. Goodman for filming their interaction with a citizen requiring medical attention. After she began, the officer demanded for her to produce identification, and arrested her when she refused. The New York County District Attorney's Office ultimately dismissed all the charges.

bb. **March 12, 2014/ Jason Disisto/ Disisto v. The City of New York, 15 CV 03296 (GHW)(S.D.N.Y.)**

Mr. Disisto was arrested while attempting to film an officer search the bag of an acquaintance. The officers threw the cell phone out of the police vehicle. The

entirety of the interaction was captured by a security camera. Natasha Vargas-Cooper, *Video: NYPD attacks and Arrest Man for Filming a Cop Pawing a Woman*, Jezebel (May 4, 2015), <http://jezebel.com/video-nypd-attacks-and-arrests-man-fro-filiming-a-cop-p-1701890381>

cc. **April 2, 2014/ Wajid Kahlil Al-Qadaffi/ Al-Qadaffi v. The City of New York, 15 CV 0052 (PAE)(S.D.N.Y.)**

On April 2, 2014, Mr. Al-Qadaffi was detained by members of the NYPD in retaliation for recording police activity.

dd. **July 18, 2014/ Ruben An/ An v. City of New York, 16 cv 05381 (LGS)(S.D.N.Y.)**

Mr. An observed three NYPD officers questioning another man and began filming the interaction on his cellphone. An officer advised Mr. An to step back and he complied. The officer threatened Mr. An with a disorderly conduct summons and requested identification. Mr. An did not produce identification and continued filming. The officer then twisted Mr. An's arm, confiscated his cellphone, and arrested him for obstruction of governmental administration and disorderly conduct. A jury trial took place and returned a not-guilty verdict on all counts.

Nathan Tempey, *Video: Activist Sues City after Cops Arrest Him for Filming*, Gothamist (July 6, 2016), http://gothamist.com/2016/07/06/filming_nypd_lawsuit.php

ee. **September 5, 2014/ Deyan Fang/Fang v. City of New York, 15 CV 04886 (NRB)(S.D.N.Y.)**

Mr. Fang was working as a street vendor selling drawing when the police arrived

and asked him for identification. He complied and began recording the incident. The NYPD officers arrested him and charged him with resisting arrest and a statutory violation for standing within ten feet of a crosswalk. The charges were adjourned in contemplation of dismissal. The plaintiff's phone was held by the District Attorney's Office for two months, and when it was returned, the video of the incident had been deleted.

ff. **January 202, 2015/ Joel Delorbe-Bell/ Delorbe-Bell v. City of New York, 15 CV 02344 (LGS)(S.D.N.Y.)**

Mr. Delorbe-Bell was a passenger in a car that the NYPD pulled over for tinted windows. Mr. Delorbe-Bell began recording when officers ordered him out of the car, grabbed him by the hand in which he had the phone, searched him, and handcuffed him. He was arrested and charged with disorderly conduct, which was subsequently dismissed at the first court appearance.

gg. **March 29, 2015/ Daniel Teitell/ Teitell v. City of New York, 15 CV 4187(JG)(JO)(E.D.N.Y.)**

Mr. Teitell was arrested filming officers interrogate a man in a public park at night. The officers explicitly told him that they were arresting him rather than giving a citation because he had decided to film them (the citation also would have been unjustified as the park was open to the public at the time).

hh. **July 3, 2015/ Luis Gonzalez/ John v. Demaio, 15 CV 06094 (NGG)(E.D.N.Y.)**

Mr. Gomez was at a barbecue when police arrived and began searching people. Luis Gomez began recording. Officers told him to put the phone away and grabbed

him, handcuffed him, and charged him with disorderly conduct. The case was adjourned in contemplation of dismissal.

ii. August 10, 2015, Benjamin Beckford/ Beckford v. City of New York, 16 CV 02261 (AKH) (S.D.N.Y.)

Mr. Beckford recorded an incident of police searching his family in front of their home. He was arrested as a result of the filming, and subsequently released, without charges and without any explanation.

jj. March 14, 2016/ Dennis Flores

Mr. Flores, founder of the police watchdog group El Grito de Sunset Park, was arrested for jaywalking after filming NYPD Strategic Response Group officers during a protest in the Bronx. *A Week of Crackdowns on Activists and Cop watchers in NYC*, Huffington Post (Mar. 17, 2016) http://huffingtonpost.com/josmar-trujillo/a-week-of-crackdowns-on-a_b_9484768.html

kk. March 16, 2016/Ramsey Orta

Ramsey Orta, the man who videotaped the killing of Eric Garner, was arrested in the process of videotaping NYPD officers making an arrest. He was also arrested in February for assaulting his wife, but both Mr. Orta and his wife say this is a lie. According to Mr. Orta, the NYPD has been engaging in a pattern of harassment even since he filmed Mr. Garner's death in July of 2014. Ben Keller, *NYPD Arrest Ramsey Orta, Man who Recorded Eric Garner Death, for Recording Too Closely, Photography Is Not a Crime* (Mar. 19, 2016), <http://photographyisnotacrime.com/2016/03/19/nypd-arrest-ramsey-orta-man->

[who-recorded-eric-garner-death-for-recording-too-closely/](#)

ll. March 17, 2016/Joseph Hayden and Five Mualimm-ak

Mr. Hayden and Mr. Mualimm-ak, prisoners' rights and mental health activists, filmed an interaction between two NYPD officers and a homeless man who appeared in a headlock. Both men were arrested and charged with obstructing governmental administration and disorderly conduct. Victoria Law, *its 2016 and the NYPD Will Still Arrest You for Filming Them*, Gothamist (Mar. 17, 2016)

http://gothamist.com/2016/03/17/nypd_arrest_video_edp.php

mm. May 20, 2016/ Calvin West

Mr. West filmed an NYPD officer in the process of an arrest. After the arrest, the officer pointed a loaded gun at and punched Mr. West who filmed the interaction. The officer was placed on modified duty once the video surfaced. *Man Speak out after Filming Arrest in which NYPD Officer Pointed Gun at Him*, Pix 11 (May 23, 2016), <http://pix11.com/2016/05/23/man-speak-out-after-filming-arrest-in-which-nypd-officer-pointed-gun-ay-him/>

nn. June 11, 2016/ Threstan Ralph

Mr. Ralph observed five NYPD officers handcuffing a woman and recorded the interaction. An officer arrested him and charged him with disorderly conduct simply for filming the interaction. John Marzulli, *Exclusive: NYPD Accused of Arresting Man for Recording Video of Cops Cuffing Woman*, New York Daily News (June 16, 2016), <http://nydailynews.com/new-york/nypd-accused-arresting-man-recording-video-cops-article-1.2675620>

oo. **June 15, 2016/ David Rivera**

Mr. Rivera was filming an interaction involving NYPD officers taking place in a hallway in his building. The sergeant pointed a gun at him. Then, while Mr. Rivera was standing in his own apartment continuing to film, the sergeant unlawfully entered his apartment and arrested him. The Brooklyn District Attorney's Office declined to prosecute the case, John Marzulli, *See It: Infamous NYPD Sergeant Points Gun at Man Recording Her, then Busts Into Apartment and Arrests Him*, New York Daily News (June 5, 2016),

pp. **May 19, 2015, Esteban Barber v. The City of New York**

On May 19, 2015, Mr. Barber was filming interaction involving NYPD officers arresting an unknown individual in Manhattan County. NYPD officers saw Mr. Barber filming the incident and an unknown NYPD officer struck Mr. Barber in the chest so hard that Mr. Barber fell backwards and caused his phone to fall to the ground. Mr. Barber suffered deep contusions to the chest and received medical attention.

Observation of Officers

qq. **January 2, 2009/ Marrero v. City of New York, 09 CV 7924 (VM)(S.D.N.Y.)**

Mr. Marrero was assaulted and arrested by NYPD officers after he observed them falsely arrest his friend and then announced his intention to file a complaint against said officers.

- rr. **May 9, 2009/Jameel Preddie/ Preddie v. City of New York, Index No.: 302566/11 (Sup. Ct. Bronx County)**

Numerous NYPD officers beat and then arrested Jameel Preddie after he observed and objected to NYPD officers using excessive force in the course of an arrest of another.

- ss. **August 1, 2011/Alexandra Castillo, Ricardo Hanson, and John Parker/ Parker v. City of New York, 13 CV 3891 (AT)(S.D.N.Y.) and Castillo v. City of New York, 14 CV 3583 (WHP)(S.D.N.Y.)**

Three lifeguards, John Parker, Ricardo Hanson and Alexandra Castillo, leaving work were arrested in Central Park in retaliation for their observation from a reasonable distance of a police investigation of another.

- tt. **August 3, 2013/ Nicholas Behncke/ Behncke v. City of New York, 14 CV 0009 (ARR)(JO)(E.D.N.Y.)**

NYPD officers Mr. Behncke after he observed another being threatened with arrest inside of a subway station.

- uu. **March 14, 2016/ Naratu Otulana, Channing Tyner, Rachel Levine, Joshua Kristal, and Terrence Slater**

Ms. Otulana, Mr. Tyner, Ms. Levine, Mr. Kristal, and Mr. Slater observed the arrest of Joseph Hayden and Five Mualimm-ak and offered support to their fellow activists. All five were handcuffed and detained for more than two hours before being issued summons for failure to disperse. *Victoria Law, its 2016 and the NYPD*

Will Still Arrest You for Filming Them, Gothamist (Mar. 17, 2016)

http://gothamist.com/2016/03/17/nypd_arrest_video_edp.php

vv. **August 17, 2015, Michael Bento v. The City of New York**

On August 17, 2015, Michael Bento was lawfully protesting in Manhattan County.

While Mr. Bento was peacefully marching he was pushed to the ground

By an NYPD officer who dragged him to the ground and put him in a chokehold.

Mr. Bento was transported to the 17th pct. where he was issued a summons for disorderly conduct.

All of the foregoing acts by defendants deprived the plaintiff of federally protected rights.

Political Activism

ww. **August 17, 2015/ Michael Bento v. The City of New York**

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While Mr. Bento was peacefully marching he was pushed to the ground

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xx. **May 19, 2015/ Esteban Barber v. The City of New York**

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Mr. Barber filming the incident and an unknown NYPD officer struck Mr. Barber in the chest so hard that Mr. Barber fell backwards and caused his phone to fall to

the ground. Mr. Barber suffered deep contusions to the chest and received medical

attention.

yy. September 24, 2011/ Christina Gonzalez

On September 24, 2011 Christina Gonzalez was involved in a political protest and videotaped police activity, when she was grabbed and arrested and face to the ground in retaliation for exercising her right to film.

zz. January 1, 2012/ Christina Gonzalez

On January 1, 2012 Christina Gonzalez was on said date engaged in a peaceful protest on a public sidewalk in compliance with lawful orders. Police began to arrest protesters and when Ms. Gonzalez filmed the activity, she also was arrested.

aaa. June 17, 2012/ Christina Gonzalez

On June 17, 2012 Christina Gonzalez was videotaping another police protest when she was retaliated against, and wound up arrested for exercising her First Amendment Right.

bbb. July 31, 2012/ Christina Gonzalez

On July 31, 2012 Christina Gonzalez was warned to stop videotaping a police officer, Medina, Medina arrested Gonzalez and damaged her property.

Deleting/Tampering with Evidence

ccc. See Justin Sullivan/ Rodriguez v. Winski: above;

John Runnells (above)

Hadiyah Charles (above)

Santos Bobet (above)

Deyan Fang (above)

ddd. **September 17, 2015/ Jose LaSalle**

On September 17, 2015 Mr. LaSalle was attacked by two security guards at St. Barnabas Hospital. This event was witnessed by NYPD officers who failed to intervene. Mr. LaSalle was later arrested and charged with the crimes of misdemeanor assault, menacing, trespass and harassment.

eee. **June 14, 2012/ Dick George/ George v. City of New York et.al. 13 CV 3108**

On June 14, 2012 Dick George was illegally stopped, threatened and stripped searched. Part of the encounter was videotaped and the officers thwarted and deleted all photographs, audio and video recordings from his cellular phone, and later submitted false statements. Said case involved a police Lt. and a Sgt.

fff. **August 5/6 2016 Jose LaSalle v City of NY, Bronx Supreme Court**

On August 5, 2016 Jose LaSalle was videotaping a police interaction with two individuals. The officers left the individuals and proceeded to arrest LaSalle and attempt to confiscate his equipment. The District Attorney's Office declined to prosecute the case. The police department fabricated a reason to have LaSalle rearrested August 6, 2016 and then attempted to erase LaSalle's video and evidence

174. Defendant, City, knew or should have known that the acts alleged herein would deprive the plaintiff of his rights, in violation of the First, Fourth, and Fourteenth Amendments to the United States Constitution. In June 2017 a report commissioned by Mayor DiBlasio by the Civilian Complaint Review Board, titled Worth a Thousand Words: Examining Officer Interactions with Civilian Recordings of Police, incorporated by reference herein, detained

the widespread practice of police retaliation to videotaping police conduct by bystanders such as Barreto, and a lack of a proper and effective response to such practice.

175. Defendant City is directly liable and responsible for the acts of the individual police defendants because it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them, and because it repeatedly and knowingly failed to enforce the rules and regulations of the City and NYPD, and to require compliance with the Constitution and laws of the United States.
176. Despite knowledge of such unlawful de facto policies, practices and/or customs, these supervisory and policy-making officers and officials of the NYPD and the City, including NYPD Police Commissioners, did not and have not taken proper and effective steps to terminate the aforementioned unconstitutional policies, practices and/or customs, or to otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority. Instead, the City and/or NYPD sanctioned and ratified these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless disregard of the effect of said policies, practices and/or customs upon the constitutional rights of persons in the City of New York, including the retaliation to the videotaping of police activity.
177. The aforementioned City policies, practices and/or customs of failing to properly supervise, train, instruct, and discipline police officers and encouraging and or permitting an atmosphere allowing their misconduct to occur, are evidenced by the police misconduct detailed hereinabove. Specifically, pursuant to the aforementioned City policies, practices and/or customs, the individual defendants felt empowered to exercise unreasonable and

wholly unprovoked force against plaintiff, arrest plaintiff without probable cause and then fabricated and swear to a false story to cover up their blatant violations of plaintiff Barreto's constitutional rights.

178. Upon information and belief the supervisory staff within the NYPD and the command structure of the NYPD knew and/or knows that the pattern of police harassment, intimidation, cover-up, destruction of evidence, fabrication of charges, interference with the right to a fair trial as described above, existed and still existed within the NYPD. The NYPD's failure to take measures to curb this pattern of abuse constitutes acquaintance in the known unlawful behavior of its officers. The prevalence of these practices and general knowledge of their existence, and the failure of these defendants to take remedial action despite the fact that the foregoing has been persistently brought to the NYPD's attention, constitutes deliberate indifference to the rights and safety of the public in general, and plaintiff in particular. The defendants' conduct has been a substantial factor in the continuation of such violence and a proximate cause of the constitutional violations against Barreto alleged in this Complaint.
179. Upon information and belief the NYPD operates under a system-wide policy. With some exceptions, the NYPD trains all of its officers at a single Training Academy according to a uniform curriculum; maintains a centralized Investigation Division to investigate allegations such as those contained herein under uniform procedures; and maintains a centralized unit to conduct administrative prosecutions (or to decline to prosecute, or to plea-bargain) in those few instances where the NYPD substantiates the allegation(s).
180. Upon information and belief the supervisory staff of the NYPD has consistently failed to

investigate allegations such as those contained herein and to discipline officers who have violated NYPD guidelines. The investigation of these incidents by central office and/or supervisory staff reflects a bias in favor of uniformed officers. Furthermore, officers and staff who are known to have violated an individual's civil rights in one command are often transferred by NYPD to another command rather than be disciplined, demoted or fired by the NYPD.

181. That the failure to make any meaningful investigation into the widespread practices of use of force against individuals of color such as the plaintiffs herein, against the use of excessive force against individuals of color, for retaliation to exercise of 1st amendment rights, to failure to intervene, mitigate, stop and report, for fabricating evidence to justify acts of misconduct , to engaging in improper and unnecessary strip searches and use of CEW weapons, and malicious prosecution, has been a proximate cause to the violations of the constitutional rights sustained by the plaintiffs herein.
182. That by reason of the aforesaid, Barreto was deprived of his liberty, was injured physically and/or emotionally, and he was damaged.
183. That by reason of the aforesaid, Barreto has been damaged and seeks compensatory damages. punitive damages, costs, attorney's fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A TWENTY-FIRST THROUGH TWENTY-FIFTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, BY LOJA, CAMACHO, FARRELL, PULAWSKI,
SANTOS AND OTHER UNKNOWN “OFFICERS”, EACH
IN HIS INDIVIDUAL CAPACITY AND AS AN AGENT OF
THE CITY OF NEW YORK, BARETTO ALLEGES:

184. That plaintiff Barreto, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "183" with the same force and affect as if more fully and at length set forth herein.

185. That at all times mentioned in this Complaint, the defendants “Loja”, “Camacho”, “Farrell”, “Pulawski”, “Santos” and the “Does” was each employed by the defendant The City of New York and/or The New York City Police Department. Upon information and belief at all times set forth in this Complaint, each officer was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

186. That upon information and belief, at all times hereinbefore and hereinafter mentioned, each of the defendant “officers” was acting pursuant to orders and directives from defendant, The City of New York.

187. That upon information and belief , during all times mentioned in this Complaint, each defendant “officer” acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this Complaint to the injury of the plaintiff, Barreto, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, and Fourteenth Amendments to the

Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986

188. That the unlawful and illegal conduct of each defendant “officers” deprived plaintiff, Barreto of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.
- c) The right to freedom of speech and expression.
- d) The right to a fair trial
- e) The right not to be subjected to cruel and inhuman treatment, including the excessive force.
- f) The right not to be discriminated against based upon the plaintiff’s race, creed, sex, or sexual orientation

189. That by reason of the aforesaid violations, including but not limited to: the use of force, use of arbitrary, excessive and sadistic force, seizure of plaintiff’s person, plaintiff’s false arrest and false imprisonment, assault and battery, retaliation to use of free speech, falsifying evidence, providing false testimony and/or reports, strip searching, failing to intervene, mitigate and/or stop the violations from occurring, as well as malicious

prosecution, the defendants, Loja, Camacho, Farrell, Pulawski, Santos and the Does violated Barreto's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York. Further, that "the officers" and the City, under the doctrine of respondent superior, violated 42 U.S.C. §1983.

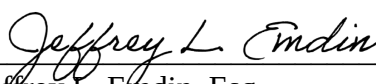
190. That as a direct proximate result of "the officers" actions plaintiff, Barreto was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

191. That by reason of the aforesaid, plaintiff, Barreto, was injured in mind and body, suffers, and upon information and belief, will continue to suffer, great physical and mental pain, and has expended and incurred divers sums of money in an effort to cure himself of said injuries, to extricate himself from the indignities and humiliation foisted upon him by the actions of the "officers".

192. That by reason of the aforesaid, the plaintiff, Barreto, has been damaged and seeks compensatory damages, plus, punitive damages, costs, attorney's fees, expert fees, as set forth and provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages, costs, and such other and further relief as to the Court seems just and proper on the First through the Twenty-fifth causes of action.

DATED: New York, New York
May 26, 2020



Jeffrey L. Emdin, Esq.,
Emdin & Russell, LLP.
Attorneys for plaintiff
330 West 38th St. Suite 302
New York, New York 10018
(212) 265-1350

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

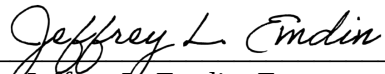
That I am an attorney associated with the law firm of Jeffrey L. Emdin, Esq., the attorneys of record for the Plaintiffs in the within action; that I have read the foregoing Summons and Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Complaint is made by me and not by the Plaintiffs is that the Plaintiffs do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiffs and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
May 26, 2020


By: Jeffrey L. Emdin, Esq.